

The Fit and Proper Person (FPP) Test is where the Secretary of the Department of Agriculture, Fisheries and Forestry (or delegate) decides whether a person, or company, is of a trustworthy nature and demonstrates the personal integrity to export agricultural goods from Australia. It is applied when someone is applying for an export licence, registering an export establishment, proposing an export arrangement, or being appointed as an authorised officer, approved assessor or approved auditor.

The Test itself is in Section 372 of the Export Control Act 2020.

The Test is applied to:

- you, the applicant
- company directors
- key people in management or control
- ‘associates’ of these people.

‘Associates’ are anyone in a position to control or influence the applicant in the conduct of an export activity. This can include a spouse, partner, consultant, adviser, employer or employee of the person concerned, or a corporation in which the person holds shares. It can also include other family members, such as children, parents and grandparents.

After you make an export application, the FPP Team may research information about you or your company for inclusion in an FPP report. However, you should ensure you provide all of the required information within your application as it is open to the department to make a decision based solely on the information that you provide. This report is provided to the Secretary (or delegate) who applies the FPP Test when making a regulatory decision.

The FPP report contains the following information:

- any debts owed to the government
- any criminal records - such as convictions, contraventions or penalties of State, Territory or Commonwealth laws
- false or misleading statements made, or inaccurate information given in applications
- previous failures to comply with regulatory directions
- refused, suspended or revoked licenses, registrations, export arrangements, or appointments
- findings about associates (using the same criteria as applied to the applicant)
- industry issues relating to the person’s export business
- any other relevant matter.

This information is considered by the Secretary (or delegate) as part of making a decision whether to grant an export licence, register an export establishment, approve an application, or appoint certain people.

The Secretary (or delegate) may refuse an application on the basis of the information contained in the FPP report.

When applying for an export permit, make sure all the information you provide about yourself, your employees, key management, and associates is accurate and complete. You also need to inform the department of any important changes in your business or personnel.

You must supply accurate and up-to-date information in your application. It is an offence to make a false statement, and this can impact your eligibility as a 'Fit and Proper Person'.

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/from-australia/fpp-test>